PECH GROUP HOLDINGS LTD

Technology & Infrastructure Enablers for Africa

PECH

API DEVELOPER AGREEMENT

PECH Group Holdings Ltd

API DEVELOPER AGREEMENT

THIS API DEVELOPER AGREEMENT (hereinafter referred to as the "Agreement") is made and entered into on this ____ day of _____, 20____

BETWEEN:

PECH GROUP HOLDINGS LTD (RC Number: _____), a company incorporated under the laws of the Federal Republic of Nigeria, with its registered office at Lagos, Nigeria (hereinafter referred to as **"PECH"** or the **"Platform Provider"**)

AND:

Name/Company: _____

Address: _____

RC/BN Number (if applicable): _____

Contact Email: _____

(hereinafter referred to as the **"Developer"**)

1. DEFINITIONS

Term	Definition
API(s)	The application programming interfaces provided by PECH, including IoT APIs, Marketplace APIs, Logistics APIs, Payments APIs, and Creator Platform APIs
API Key	The unique authentication credentials issued to the Developer for accessing PECH APIs
Developer Application	Any software, application, integration, or service built by the Developer using PECH APIs
Documentation	The technical documentation, SDKs, guides, and reference materials provided by PECH for API usage
Platform	The PECH Commerce & Infrastructure Operating System, including all APIs, dashboards, and related services
Sandbox	The testing and development environment provided by PECH for API integration
User Data	Any personal data of end users processed through the Developer Application via PECH APIs

2. API ACCESS GRANT

2.1. Subject to the terms of this Agreement, PECH grants the Developer a **non-exclusive, non-transferable, revocable license** to access and use the PECH APIs solely for the purpose of developing, testing, and operating the Developer Application.

2.2. This license does not grant the Developer any ownership rights in the PECH APIs, Platform, Documentation, or SDKs.

2.3. PECH reserves the right to modify, update, deprecate, or discontinue any API with reasonable notice to the Developer.

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3. PERMITTED USE

3.1. The Developer may use the PECH APIs to:

(a) Build applications, integrations, and plugins that interact with the PECH Platform;

(b) Access Sandbox environments for testing and development;

(c) Process transactions and data through the PECH Platform as documented;

(d) Display PECH-sourced data within the Developer Application in compliance with PECH's branding guidelines.

3.2. The Developer shall comply with all applicable API rate limits, usage quotas, and version requirements as specified in the Documentation.

4. API KEYS AND CREDENTIALS

4.1. PECH shall issue API Keys to the Developer upon approval of this Agreement.

4.2. The Developer shall:

(a) Keep all API Keys and credentials strictly confidential;

(b) Not share, publish, or expose API Keys in client-side code, public repositories, or any publicly accessible location;

(c) Implement industry-standard security measures to protect API Keys;

(d) Notify PECH immediately if any API Key is compromised or suspected to be compromised;

(e) Rotate API Keys as recommended by PECH.

4.3. PECH may revoke API Keys immediately if they are compromised, misused, or if the Developer breaches this Agreement.

5. DEVELOPER OBLIGATIONS

5.1. The Developer shall:

(a) Comply with all PECH API Documentation, guidelines, and best practices;

(b) Maintain compatibility with the current supported version of the PECH APIs;

(c) Implement appropriate error handling and rate limit compliance;

(d) Maintain reasonable uptime and performance standards for the Developer Application;

(e) Provide accurate and up-to-date contact information to PECH;

(f) Respond promptly to PECH communications regarding security issues or API changes;

(g) Display appropriate PECH attribution as required by the Documentation.

6. INTELLECTUAL PROPERTY

6.1. **PECH IP:** PECH retains all right, title, and interest in and to the Platform, APIs, SDKs, Documentation, trademarks, and all related Intellectual Property. Nothing in this Agreement transfers any PECH IP to the Developer.

6.2. **Developer IP:** The Developer retains ownership of the Developer Application code that is independently created, excluding any PECH IP incorporated therein.

6.3. **Contributions:** Any feedback, suggestions, bug reports, or contributions submitted by the Developer to PECH regarding the Platform or APIs shall become the exclusive property of PECH, and the Developer hereby assigns all rights therein to PECH.

6.4. **Showcase License:** The Developer grants PECH a non-exclusive, royalty-free, worldwide license to list, showcase, and promote the Developer Application on PECH's website, documentation, and marketing materials.

6.5. **No Reverse Engineering:** The Developer shall not reverse engineer, decompile, disassemble, or attempt to derive the source code of the PECH APIs or Platform.

7. DATA PROTECTION

7.1. The Developer shall comply with the Nigeria Data Protection Act 2023 (NDPA) and all applicable data protection laws when processing User Data via PECH APIs.

7.2. The Developer shall:

(a) Implement appropriate technical and organizational measures to protect User Data;

(b) Process User Data only for the purposes disclosed to and consented by the end user;

(c) Not sell, share, or transfer User Data to third parties without appropriate consent and legal basis;

(d) Maintain a privacy policy that accurately describes data collection and processing practices;

(e) Promptly notify PECH of any data breach affecting User Data within twenty-four (24) hours of discovery.

7.3. A Data Processing Agreement is attached as **Schedule A** and forms part of this Agreement.

8. REVENUE SHARING

8.1. Where the Developer Application generates revenue through the PECH Platform (e.g., marketplace app sales, transaction fees, subscription services), the revenue sharing terms shall be as follows:

Revenue Type	Developer Share	PECH Share
App/Plugin Sales	____%	____%
Transaction Commissions	____%	____%
Subscription Revenue	____%	____%

8.2. Revenue statements shall be provided monthly. Payments shall be made within fifteen (15) business days of each statement.

8.3. PECH shall deduct applicable withholding tax at source as required by the Federal Inland Revenue Service (FIRS).

8.4. If no revenue sharing applies, this Clause 8 shall be marked as "Not Applicable" by both Parties.

Revenue Sharing Applicable: [ ] Yes [ ] No

9. CONFIDENTIALITY

9.1. The Developer shall keep confidential all non-public information received from PECH, including:

(a) API documentation not publicly available;

(b) Sandbox data and test environments;

(c) Pre-release API features and roadmap information;

(d) Technical specifications and architecture details;

(e) Business terms, pricing, and revenue data.

9.2. Confidentiality obligations shall survive termination of this Agreement for a period of five (5) years, and indefinitely for trade secrets.

10. ACCEPTABLE USE POLICY

10.1. The Developer shall NOT:

(a) Use the PECH APIs to build a competing platform or service;

(b) Scrape, crawl, or mine data from the PECH Platform beyond API access;

(c) Attempt to circumvent API rate limits, authentication, or security measures;

(d) Use the APIs for any illegal, fraudulent, or harmful purpose;

(e) Distribute malware, viruses, or malicious code through the Developer Application;

(f) Misrepresent the Developer Application as an official PECH product;

(g) Use PECH trademarks or branding in a way that implies endorsement without written approval;

(h) Store or cache User Data beyond what is necessary for the Developer Application's functionality;

(i) Facilitate or enable unauthorized access to the PECH Platform.

11. SERVICE LEVEL

11.1. PECH shall use reasonable efforts to maintain API availability but provides the APIs **"as-is"** for the free tier.

11.2. Paid API tiers may include Service Level Agreements (SLAs) as specified in a separate agreement.

11.3. PECH shall provide reasonable notice of scheduled maintenance and API changes.

11.4. PECH shall not be liable for any downtime, data loss, or service interruptions beyond the scope of any applicable SLA.

12. TERMINATION

12.1. **Developer Termination:** The Developer may terminate this Agreement at any time by providing thirty (30) days' written notice to PECH and ceasing use of the APIs.

12.2. **PECH Termination:** PECH may terminate this Agreement or revoke API access:

(a) Immediately, for breach of the Acceptable Use Policy or security incidents;

(b) With thirty (30) days' notice, for any other reason.

12.3. **Effect of Termination:**

(a) All API access shall be revoked;

(b) The Developer shall cease using all PECH APIs, SDKs, and Documentation;

(c) The Developer shall delete all API Keys, cached data, and PECH Confidential Information;

(d) Revenue sharing obligations for earned but unpaid amounts shall survive;

(e) Clauses 6, 7, 9, 10, 13, 14, 15, and 16 shall survive termination.

12.4. **Data Portability:** The Developer may export their own data within thirty (30) days of termination.

13. INDEMNIFICATION

13.1. The Developer shall indemnify, defend, and hold harmless PECH and its officers, directors, employees, and agents from and against all claims, losses, damages, liabilities, costs, and expenses (including reasonable legal fees) arising from:

(a) The Developer Application and its use by end users;

(b) The Developer's breach of this Agreement;

(c) The Developer's violation of applicable laws or third-party rights;

(d) Any data breach or security incident caused by the Developer;

(e) Any claim that the Developer Application infringes third-party IP rights.

14. LIMITATION OF LIABILITY

14.1. TO THE MAXIMUM EXTENT PERMITTED BY LAW, PECH'S TOTAL LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY THE DEVELOPER TO PECH IN THE TWELVE (12) MONTHS PRECEDING THE CLAIM, OR ONE HUNDRED THOUSAND NAIRA (NGN 100,000), WHICHEVER IS GREATER.

14.2. IN NO EVENT SHALL PECH BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, DATA, OR BUSINESS OPPORTUNITY.

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15. DISPUTE RESOLUTION

15.1. Any dispute shall first be resolved through good faith negotiation between the Parties.

15.2. If not resolved within thirty (30) days, the dispute shall be submitted to mediation.

15.3. If mediation fails, the dispute shall be resolved by arbitration in Lagos, Nigeria, in accordance with the Arbitration and Mediation Act 2023.

15.4. **Governing Law:** This Agreement shall be governed by the laws of the Federal Republic of Nigeria.

16. GENERAL PROVISIONS

16.1. **Entire Agreement:** This Agreement constitutes the entire agreement between the Parties.

16.2. **Amendment:** This Agreement may only be amended by written instrument signed by both Parties, or by updated API Terms of Service published by PECH with thirty (30) days' notice.

16.3. **Severability:** Invalid provisions shall be modified to the minimum extent necessary.

16.4. **No Assignment:** The Developer may not assign this Agreement without PECH's written consent.

16.5. **Independent Parties:** This Agreement does not create a partnership, joint venture, or agency relationship.

16.6. **Notices:** All notices shall be in writing to the addresses specified herein.

SIGNATURES

FOR AND ON BEHALF OF PECH GROUP HOLDINGS LTD:

Name:	_____
Title:	_____
Signature:	_____

Date:	_____

DEVELOPER:

Name/Company:	_____
Authorized Signatory:	_____
Signature:	_____
Date:	_____

SCHEDULE A: DATA PROCESSING AGREEMENT

Data Controller: End User / Developer (as applicable)

Data Processor: PECH Group Holdings Ltd (for Platform processing)

Sub-Processor: Developer (for Developer Application processing)

Categories of Data Subjects:	End users of the Developer Application
Types of Personal Data:	As determined by the Developer Application's functionality
Purpose of Processing:	Provision of services through the PECH Platform
Duration of Processing:	Duration of this Agreement
Security Measures:	Encryption in transit (TLS 1.2+), access controls, audit logging

Developer's Data Protection Obligations:

1. Process User Data only on documented instructions
2. Ensure persons authorized to process data have committed to confidentiality
3. Implement appropriate technical and organizational security measures
4. Assist PECH in responding to data subject requests
5. Notify PECH of data breaches within 24 hours
6. Delete or return all User Data upon termination
7. Make available information necessary to demonstrate compliance

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